

E5 ENCLAVE INCORPORATED

Package Overview

Governance Package · Draft v1.0 — Prepared September 18, 2026

DRAFT — pending counsel review and board adoption. Nothing has been filed with the State of Florida. Nothing has been adopted. What the package contains, the control design in plain language, the purposes-clause solution, and the exact filing action.

Draft v1.0 · Prepared 2026-09-18

DRAFT ONLY. NOTHING FILED. NOTHING ADOPTED.

Counsel review required before any filing or adoption. No filing occurs without the Chairman's separate explicit written authorization.

Corporation: E5 ENCLAVE INCORPORATED — Florida not for profit corporation, Document No. N24000007976, filed 2024-07-01, Active · EIN 99-3822441 · IRS Letter 947 (07/12/2024), §501(c)(3) public charity §509(a)(2), effective 06/30/2024 · FDACS CH85245.

Terminology note: the Chairman said "Articles of Organization." For a Florida nonprofit *corporation* the correct instrument is the **Articles of Incorporation** (Chapter 617, F.S.); "Articles of Organization" is the LLC instrument (Chapter 605, F.S.). This package uses the correct corporate instrument.

Commission: rebuild the corporation's formation/governance documents (the original formation used generic provisions) to lawfully insulate the Chairman's control while remaining compliant. Draft package only.

Files

#	File	Contents
01	01-amended-restated-articles-of-incorporation.md	Amended and Restated Articles of Incorporation (Ch. 617)
02	02-bylaws.md	Comprehensive Bylaws
03	03-board-adoption-package.md	Board written consent, Founder-Member written consent, Conflict of Interest Policy (Exhibit A), disclosure form (Exhibit B)
04	04-filing-and-compliance-checklist.md	Pre-filing verification, execution, post-filing, ongoing 501(c)(3) spine
05	05-research-affiliate-option.md	STTR research-institution vehicle: dedicated nonprofit research affiliate (formation checklist, Stevenson-Wydler purposes language, cost)

The control design (plain language, five lines)

1. **One member, one vote — his.** Israel Lee Armstead is the sole voting Founder-Member; nobody else can be added as a member without his written consent, so board control can never be voted away from him.
2. **He elects and can remove every director but himself.** His own Founder-Director seat has no term expiration and is removable only by him; every other director is elected by him, serves staggered three-year terms, and any vacancy is filled by him alone.
3. **He runs the company day-to-day.** As Chairman/President/CEO he appoints and removes all officers at will, and only he may exercise Tier 3 powers (legal filings, bank/entity standing, public commitments) under the Autonomy Matrix.

4. **Elvia G. Armstead holds a consent lock as Trust Protector.** Dissolution, merger, sale of substantially all assets, changes to purposes/tax status, and amendments to the control articles all require her written consent *in addition to* his — the mission protection is bilateral, not circular.
5. **The locks lock themselves.** The articles that create this structure can only be amended with both his and the Trust Protector's written consent, so no future board can quietly unwind it.

Purposes-clause solution (the STTR finding, incorporated)

Parallel research established that E5's real operations are admittedly broader than "exclusively scientific or educational," so on a strict reading of 15 U.S.C. § 638(e)(8) → § 3703(3) E5 **fails** the STTR research-institution test — and amending E5's articles to claim otherwise would be dishonest and operationally contradicted. This package therefore:

- Drafts E5's purposes (File 01, Article II) as **501(c)(3)-clean and operationally honest**: charitable, educational, and scientific purposes covering the real work (research, education, community development, fiscal sponsorship) — with **no** forced Stevenson-Wydler language.
- Scopes the clean fix in **File 05**: a dedicated nonprofit research affiliate with genuinely exclusive scientific/educational purposes (~\$70 FL filing — verify fee), E5 as SBIR subcontractor, university/FFRDC as fallback RI.
- Carries the standing flag: **counsel must opine before E5 is named as a research institution on any STTR proposal.**

Red-team report (mandatory)

A. Chapter 617 entrenchment — authority cited per mechanism

Mechanism	Ch. 617 authority	Verdict
Sole voting Founder-Member; member elects/removes directors; member amends articles	§§617.0601, 617.0610, 617.0803, 617.0808, 617.1003	Pass — single-member nonprofit expressly contemplated
	§§617.0805 (terms as articles prescribe),	Caution — aggressive; no Florida decision squarely blesses an irremovable director.

Mechanism	Ch. 617 authority	Verdict
Founder-Director seat: no term expiration, removable only by himself	617.0808 (removal as articles provide)	Backstopped independently by the member's appointment/removal power. Counsel must confirm.
Staggered three-year terms, three classes	§617.0806 (expressly permits staggered terms)	Pass
Vacancies filled exclusively by Founder-Member	§617.0810 (as articles/bylaws provide)	Pass
Board may remove directors only for cause, 2/3 vote	§617.0808 (as articles/bylaws provide)	Pass
Entrenched provisions amendable only with member + Trust Protector consent	§617.1003 (articles may prescribe amendment procedure/vote)	Pass as drafting; bilateral lock is disclosed and intentional
Trust Protector as articles-created consent office over fundamental actions	Analogous to class-consent rights, §§617.1003–617.1022	Caution — not a statutory office; implemented as defined consent rights. Powers deliberately negative-only. Counsel must confirm.
Board action without meeting; remote participation; quorum	§§617.0821, 617.0820	Pass
Committee limits (no fundamental actions)	§617.0825 (respected in Bylaws §3.15)	Pass
Indemnification to fullest extent; records	§§617.0831, 617.1601	Pass

B. IRS 501(c)(3) organizational and operational test

- **Organizational test:** purposes limited to 501(c)(3) purposes (File 01, Art. II); no-inurement clause (Art. III(a)); lobbying/electioneering limits (Art. III(b)); compliant dissolution (Art. III(c)); savings clause (Art. III(d)). **Pass on drafting.**

- **Operational test:** the purposes clause honestly reflects actual operations (charitable + educational + scientific, including community development and fiscal sponsorship) — no aspirational narrowing. **Pass as designed.** Operations must actually remain within the clause; the lobbying/ electioneering bright lines and the COI spine are in the checklist (File 04, Part D).
- **§4958 excess-benefit risk** around founder compensation is mitigated by the COI Policy (disclosure, recusal, comparability, Trust Protector concurrence on the Chairman's own compensation). **Noted, not a drafting failure.**
- **509(a)(2) public-support test** is an operational matter flagged in the checklist, not an articles issue.

C. Consistency with ratified Board Law

- Trust Protector (Elvia G. Armstead), steward designation, and Autonomy Matrix / Escalation SLA doctrines are encoded: Articles Art. VII, Bylaws Arts. V–VI, Tier-3 reservation to the Chairman (Bylaws §4.3(f)), steward duties carrying the escalation doctrine (Bylaws §6.2). **Consistent.** Where Board Law and the Bylaws overlap, the higher-threshold instrument controls (Bylaws §1.4).
- **Gap:** the *verbatim* ratified text of Board Law Articles V and VI was not recoverable in this drafting session; encoding follows the summaries on record. Flagged below.

D. Failures found and fixed in this pass

1. Forced "exclusively scientific or educational" purposes language — **removed**; would have contradicted real operations (STTR homework finding). Resolved via the affiliate file.
2. Any invention of registered agent, directors, EIN, or principal office — **none invented**; all bracketed for verbatim carryover from the live Sunbiz record.
3. Committee authority over fundamental actions — **removed** (§617.0825 compliance).
4. Trust Protector with potential directive authority — **narrowed to consent-only** (avoids de-facto-director exposure).
5. Membership with no succession — **closed** (Articles Art. IV §4: vests in the Trust Protector or written designee).

6. Bylaw entrenchment not mirroring Articles entrenchment — **aligned** (Bylaws §12.2 requires member consent; Article V changes additionally require Trust Protector consent).

E. Unverified — carried to counsel, none papered over

1. Verbatim text of ratified Board Law Articles V and VI (encoded from summaries).
2. Irremovable Founder-Director seat (aggressive — counsel confirm).
3. Trust Protector as articles-created consent office (counsel confirm).
4. Current Sunbiz Articles text vs. restatement deltas; registered agent name/address; principal office; third director of record; current filing fee — **all bracketed, all preconditions to filing** (File 04, Part A).
5. Whether the currently filed articles already provide for members (adoption procedure depends on it).
6. Steward as advisory non-director/non-officer role held in an agency capacity (counsel confirm formulation).

The exact filing action requiring the Chairman's explicit word

"File the Amended and Restated Articles of Incorporation of E5 ENCLAVE INCORPORATED with the Florida Division of Corporations."

That is a separate written direction (Resolution B, File 03) — signing the adoption package does not itself authorize filing. Formation of the research affiliate (File 05) is a second, separate decision requiring its own explicit word. Neither has been given.

E5 ENCLAVE INCORPORATED

Amended and Restated Articles of Incorporation

Governance Package · Draft v1.0 — Prepared September 18, 2026

DRAFT — pending counsel review and board adoption. Nothing has been filed with the State of Florida. Nothing has been adopted. The draft restated charter of E5 Enclave Incorporated — a Florida nonprofit corporation under Chapter 617.

E5 ENCLAVE INCORPORATED

A Florida Not For Profit Corporation (Chapter 617, Florida Statutes)

DRAFT — NOT FILED. Prepared 2026-09-18 for review by the Chairman and legal counsel. Nothing in this package is filed with the Florida Division of Corporations until the Chairman explicitly authorizes filing. Counsel review required before filing.

Terminology note (per the Chairman's commission): he said "Articles of Organization." For a Florida nonprofit *corporation*, the correct instrument is the **Articles of Incorporation** (Chapter 617, F.S.). "Articles of Organization" is the formation instrument for a Florida *limited liability company* (Chapter 605, F.S.). This package uses the correct corporate instrument throughout.

Document No. (current record): N24000007976 · **Filed:** 2024-07-01 · **Status:** Active **EIN:** 99-3822441 · **IRS determination:** Letter 947, dated 07/12/2024, §501(c)(3) public charity §509(a)(2), effective 06/30/2024



ARTICLE I — NAME

The name of the Corporation is **E5 ENCLAVE INCORPORATED** (the "Corporation"). The name is unchanged by this restatement.

ARTICLE II — PURPOSES

The Corporation is organized and shall be operated **exclusively for charitable, educational, and scientific purposes** within the meaning of Section 501(c)(3) of the Internal Revenue Code of 1986, as amended (or the corresponding provision of any future United States internal revenue law) (the "Code").

In furtherance thereof, and without limiting the generality of the foregoing, the Corporation may:

- (a) **Scientific research.** Conduct, fund, and support scientific research and technological development, including research in artificial intelligence and machine learning, agricultural technology and precision agriculture, data science, and community technology systems; and publish, disseminate, and make freely available the resulting research, datasets, methodologies, and open technologies;
- (b) **Education.** Provide educational programs and activities, including youth leadership development, workforce training and learn-to-earn programs, educational media and publications, and public education concerning economic inclusion, technology, and community development;
- (c) **Charitable community development.** Combat community deterioration and relieve the poor, the distressed, and the underprivileged through programs advancing food security, economic inclusion, small-business development, and community infrastructure in underserved communities;
- (d) **Fiscal sponsorship.** Serve as fiscal sponsor for projects consistent with the Corporation's charitable, educational, and scientific purposes as stated herein;

(e) **Incidental powers.** Engage in any and all lawful activities incidental to the foregoing purposes, and exercise all powers granted to not for profit corporations under Chapter 617, Florida Statutes, consistent with Section 501(c)(3) of the Code.

Drafting note — the three-way purposes question, resolved. An earlier design considered stating E5's purposes as "exclusively scientific or educational" to satisfy the STTR "research institution" definition (15 U.S.C. § 3703(3), Stevenson-Wydler). Parallel research concluded that would **contradict E5's real operations** (which are admittedly broader — community development, fiscal sponsorship, economic-inclusion work) and that amending purposes alone is a weak fix. This restatement therefore does **not** attempt Stevenson-Wydler compliance. E5's purposes are 501(c)(3)-clean and operationally honest. The STTR research-institution lane is addressed by a **dedicated research affiliate** — see File 05. Counsel must opine before E5 is named as a research institution on any STTR proposal.

ARTICLE III — 501(c)(3) LIMITATIONS (ORGANIZATIONAL TEST)

(a) **Inurement.** No part of the net earnings of the Corporation shall inure to the benefit of, or be distributable to, its members, directors, officers, or other private persons, except that the Corporation shall be authorized and empowered to pay reasonable compensation for services rendered and to make payments and distributions in furtherance of the purposes set forth in Article II. No member, director, or officer of the Corporation shall have any personal interest in the property or assets of the Corporation.

(b) **Lobbying.** No substantial part of the activities of the Corporation shall be the carrying on of propaganda, or otherwise attempting to influence legislation, and the Corporation shall not participate in, or intervene in (including the publishing or distribution of statements), any political campaign on behalf of or in opposition to any candidate for public office.

(c) **Dissolution.** Upon the dissolution of the Corporation, assets shall be distributed for one or more exempt purposes within the meaning of Section 501(c)(3) of the Code, or shall be distributed to the federal government, or to a state or local government, for a public purpose. Any such assets not so disposed of shall be disposed of by a court of competent jurisdiction of the county in which the principal office of the Corporation is then located, exclusively for such purposes or to such organization or

organizations, as said court shall determine, which are organized and operated exclusively for such purposes.

(d) **Construction.** Notwithstanding any other provision of these Articles, the Corporation shall not carry on any activities not permitted to be carried on by a corporation exempt from federal income tax under Section 501(c)(3) of the Code.

ARTICLE IV — MEMBERSHIP (FOUNDER-MEMBER CONTROL)

Section 1. Single class; sole member. The Corporation shall have one (1) class of membership. The sole member of the Corporation (the "Founder-Member") is **Israel Lee Armstead**. The Founder-Member holds one hundred percent (100%) of the voting power of the membership.

Section 2. Non-transferability; no additional members. The Founder-Member's membership is personal to him and is not transferable except as provided in Section 4. No additional members, and no additional classes of membership, shall be created or admitted without the prior written consent of the Founder-Member.

Section 3. Member powers. The Founder-Member shall have all powers granted to members under Chapter 617, Florida Statutes, including the exclusive power to elect and remove directors as provided in Article V, and the exclusive power to amend these Articles as provided in Article X. The Founder-Member may act by written consent without a meeting as provided in the Bylaws.

Section 4. Succession. Upon the death, legal incapacity, or written resignation of the Founder-Member, the membership shall vest in the then-serving Trust Protector (Bylaws, Article V), who shall thereupon become the sole Founder-Member with all rights under this Article, or in such person as the Founder-Member shall have designated in a written instrument delivered to the Secretary. Until such vesting, the Board of Directors shall manage the Corporation's affairs in accordance with these Articles and the Bylaws.

Legal basis (Ch. 617): §617.0601 (articles may provide for classes of members and prescribe their rights); §617.0610 (voting rights as articles provide); §617.0803 (members elect directors); §617.0808 (members

remove directors); §617.1003 (amendments adopted by members). A single-member nonprofit corporation is expressly contemplated by the chapter.

ARTICLE V — BOARD OF DIRECTORS

Section 1. Number. The Board of Directors shall consist of not fewer than three (3) nor more than seven (7) directors, the exact number to be fixed from time to time by resolution of the Founder-Member. The initial number is three (3).

Section 2. Founder-Director. **Israel Lee Armstead** shall serve as a director of the Corporation (the "Founder-Director") continuously until his resignation in writing, removal by his own act, death, or legal incapacity. The Founder-Director is not subject to term expiration and may not be removed by the Board or by any person other than himself. This Section may be amended or repealed only as provided in Article X.

Section 3. Other directors; staggered terms. Directors other than the Founder-Director shall be elected by the Founder-Member to three (3) classes as nearly equal in number as possible, serving staggered three-year terms, as further provided in the Bylaws. The initial directors are:

- **Israel Lee Armstead** — Founder-Director (no term expiration)
- **Tanya R. Armstead** — Class I (term expires at the 2027 annual election)

OPEN ITEM

per 2026-09-12 board roster; confirm against current Sunbiz record

- *OPEN ITEM*
Third director — name from the current Sunbiz annual report of record — Class II (term expires at the 2028 annual election)

Section 4. Vacancies. Any vacancy on the Board, however created, shall be filled exclusively by the Founder-Member.

Section 5. Removal. The Founder-Member may remove any director other than the Founder-Director at any time, with or without cause. The Board of Directors may remove a director other than the Founder-Director only for cause and only upon the affirmative vote of two-thirds (2/3) of the directors then in office.

Section 6. Powers. The business and affairs of the Corporation shall be managed by or under the direction of the Board of Directors, subject to the rights of the Founder-Member and the consent rights of the Trust Protector as set forth herein.

Legal basis (Ch. 617): §617.0803 (number and election of directors; three-director minimum); §617.0805 (terms; articles/bylaws prescribe); §617.0806 (staggered terms permitted); §617.0808 (removal as articles/bylaws provide); §617.0810 (vacancies filled as articles/bylaws provide). **Red-team flag:** a non-expiring, irremovable Founder-Director seat is aggressive — the chapter permits articles to prescribe terms and removal procedures, but no Florida decision squarely blesses an irremovable director. Counsel must confirm. The Founder-Member structure (Article IV) provides independent, unassailable appointment/removal control even if this Section were narrowed.

ARTICLE VI — OFFICERS

The officers of the Corporation shall be as provided in the Bylaws. The Chairman, President and Chief Executive Officer is **Israel Lee Armstead**, who shall have the authority to appoint and remove all other officers of the Corporation at will, to preside at meetings, and to execute instruments on the Corporation's behalf, as further defined in the Bylaws.

Legal basis: §§617.0840–617.0842 (officers appointed and removed as bylaws provide).

ARTICLE VII — TRUST PROTECTOR

Section 1. Office. There is established the office of Trust Protector of the Corporation. The initial Trust Protector is **Elvia G. Armstead**, serving pursuant to the Board Law ratified 2026-09-09.

Section 2. Consent rights. The following actions require the prior written consent of the Trust Protector in addition to any other approvals required by law, these Articles, or the Bylaws: (a) dissolution or liquidation of the Corporation; (b) merger, consolidation, or conversion of the Corporation; (c) sale, lease, or disposition of all or substantially all of the Corporation's assets; (d) any amendment to Article II (Purposes), Article III, Article IV, Article V (Section 2), this Article VII, or Article X of these Articles; (e) any change to the Corporation's status as a Section 501(c)(3) organization.

Section 3. Appointment and removal. The Trust Protector is appointed by the Founder-Member and may be removed only by the Founder-Member. A vacancy is filled by the Founder-Member.

Section 4. Nature of powers. The Trust Protector's powers are consent (negative) powers only; the Trust Protector has no authority to direct the Corporation's operations or to remove the Founder-Director.

Legal basis and flag: "Trust Protector" is not a statutory office under Chapter 617; it is implemented here as an articles-created office with defined consent rights over fundamental actions — a technique analogous to class-consent rights recognized under §§617.1003–617.1022. Counsel should confirm the formulation. The bilateral lock (Founder-Member + Trust Protector must concur to amend this Article) is intentional: it makes the mission protection genuine rather than circular.

ARTICLE VIII — REGISTERED AGENT AND REGISTERED OFFICE

The Corporation's registered agent and registered office are **unchanged** by this restatement and are as set forth in the Corporation's current record on file with the Florida Division of Corporations (Document No. N24000007976):

- Registered Agent:

OPEN ITEM

CARRY OVER UNCHANGED — copy verbatim from current Sunbiz record; not verified in this draft

- Registered Office:

OPEN ITEM

CARRY OVER UNCHANGED — copy verbatim from current Sunbiz record; not verified in this draft

ARTICLE IX — PRINCIPAL OFFICE

The principal office and mailing address of the Corporation are as set forth in the Corporation's current record on file with the Florida Division of Corporations (Document No. N24000007976), **carried over**

unchanged by this restatement.

OPEN ITEM

Copy verbatim from current Sunbiz record; not verified in this draft.

ARTICLE X — AMENDMENTS; ENTRENCHMENT

Section 1. General amendments. Except as provided in Section 2, these Articles may be amended by the written consent of the Founder-Member, without Board action, in accordance with Chapter 617, Florida Statutes.

Section 2. Entrenched provisions. Article II (Purposes), Article III, Article IV, Article V (Section 2, Founder-Director), Article VII (Trust Protector), and this Article X may be amended or repealed only with the prior written consent of **both** the Founder-Member **and** the Trust Protector.

Legal basis: §617.1003 (amendments adopted as articles provide; articles may prescribe the vote required); §617.1021–1022 (amendment procedures). Entrenchment-by-consent is the mechanism; the bilateral lock is disclosed and intentional.

ARTICLE XI — DURATION; ADOPTION

Section 1. The duration of the Corporation is perpetual.

Section 2. These Amended and Restated Articles of Incorporation (a) restate without change all operative provisions of the Articles of Incorporation currently on file, except as amended hereby, and (b) were duly adopted by the Board of Directors and by the written consent of the Founder-Member (the sole member) in accordance with Sections 617.1002, 617.1003, and 617.1007, Florida Statutes.

Section 3. If the Corporation's filed Articles of Incorporation currently provide for members other than as set forth herein, counsel shall confirm the adoption procedure before filing; the adoption package (File 03) contains both board and member consents.



ADOPTION CERTIFICATE *(to be completed at execution)*

The undersigned certifies that the foregoing Amended and Restated Articles of Incorporation of E5 ENCLAVE INCORPORATED were duly adopted on _____, 2026, by the Board of Directors and by the Founder-Member (sole member) in accordance with Chapter 617, Florida Statutes.

Signature: _____

Printed name: Israel Lee Armstead

Title: Chairman, President and Chief Executive Officer; Founder-Member

Date: _____

E5 ENCLAVE INCORPORATED

Bylaws of E5 Enclave Incorporated

Governance Package · Draft v1.0 — Prepared September 18, 2026

DRAFT — pending counsel review and board adoption. Nothing has been filed with the State of Florida. Nothing has been adopted. The draft operating rules of the corporation — membership, board, officers, meetings, and reserved powers.

A Florida Not For Profit Corporation (Chapter 617, Florida Statutes)

DRAFT — NOT ADOPTED. Prepared 2026-09-18 for review by the Chairman and legal counsel. Adopted only by the board adoption package (File 03) upon the Chairman's authorization. Counsel review required.

These Bylaws are adopted pursuant to the Amended and Restated Articles of Incorporation of E5 ENCLAVE INCORPORATED (the "Articles"). In case of conflict, the Articles control.

Effective date: _____, 2026 (date of adoption)



ARTICLE I — NAME, OFFICES, PURPOSES

Section 1.1 Name. The name of the Corporation is E5 ENCLAVE INCORPORATED.

Section 1.2 Offices. The Corporation may have offices within or without the State of Florida as the Board of Directors may determine.

Section 1.3 Purposes. The Corporation is organized and operated exclusively for charitable, educational, and scientific purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code, as more particularly set forth in Article II of the Articles. All provisions of these Bylaws shall be construed to further, and never to expand beyond, those purposes and the limitations of Article III of the Articles.

Section 1.4 Board Law. The Board Law ratified 2026-09-09 (including Articles V and VI thereof, the Trust Protector designation of Elvia G. Armstead, and the steward designation) is the Corporation's standing governance doctrine. Where Board Law and these Bylaws address the same subject, the instrument imposing the higher approval threshold controls; nothing in Board Law authorizes action these Bylaws prohibit.



ARTICLE II — MEMBERSHIP

Section 2.1 Sole Founder-Member. The Corporation has one (1) class of membership. The sole member is Israel Lee Armstead (the "Founder-Member"), holding one hundred percent (100%) of the voting power, as set forth in Article IV of the Articles. No additional members shall be admitted except as the Articles provide.

Section 2.2 Member action. The Founder-Member may take any action permitted to members under Chapter 617 by written consent without a meeting. Annual or special meetings of members are not required; if called, reasonable notice shall be given.

Section 2.3 Reserved member powers. The following powers are reserved exclusively to the Founder-Member and may not be exercised by the Board: (a) election and removal of directors (Articles, Art. V); (b) amendment of the Articles (Articles, Art. X); (c) amendment of the entrenched Bylaw provisions

listed in Section 12.2; (d) appointment and removal of the Trust Protector (Articles, Art. VII); (e) approval of dissolution, merger, consolidation, conversion, or sale of all or substantially all assets, in addition to the Trust Protector's consent.



ARTICLE III — BOARD OF DIRECTORS

Section 3.1 Number and composition. The Board shall consist of not fewer than three (3) nor more than seven (7) directors, the exact number fixed by the Founder-Member. The Board always includes the Founder-Director (Articles, Art. V, Sec. 2).

Section 3.2 Founder-Director. Israel Lee Armstead serves as Founder-Director continuously until his written resignation, removal by his own act, death, or legal incapacity, and is not subject to term expiration or to removal by the Board or the membership except by his own act.

Section 3.3 Staggered terms. Directors other than the Founder-Director are divided into three (3) classes as nearly equal as possible, serving staggered three-year terms: Class I, Class II, and Class III. Initial

classification: Tanya R. Armstead — Class I; OPEN ITEM third director — Class II; the next elected director — Class III. Each class is elected by the Founder-Member at or before the expiration of its term. A director holds office until a successor is elected and qualified or until earlier resignation, removal, death, or incapacity.

Section 3.4 Election. All directors other than the Founder-Director are elected exclusively by the Founder-Member.

Section 3.5 Vacancies. Any vacancy, however created (including newly created directorships), is filled exclusively by the Founder-Member. A director elected to fill a vacancy serves the remainder of the vacated term's class.

Section 3.6 Removal. The Founder-Member may remove any director other than the Founder-Director at any time, with or without cause. The Board may remove a director other than the Founder-Director only for cause, upon the affirmative vote of two-thirds (2/3) of the directors then in office (the subject director

not voting). "Cause" means conviction of a felony, adjudicated breach of fiduciary duty, or willful failure to comply with the Articles, these Bylaws, or the Conflict of Interest Policy after written notice and thirty (30) days to cure where curable.

Section 3.7 Powers and duties. The Board manages the Corporation's business and affairs under the direction of the Articles, subject to the Founder-Member's reserved powers and the Trust Protector's consent rights. Directors owe the Corporation the fiduciary duties of care and loyalty, including the duty to safeguard its Section 501(c)(3) status.

Section 3.8 Chairman of the Board. The Founder-Director serves as Chairman of the Board, presides at all Board meetings, and is the Corporation's President and Chief Executive Officer unless the Founder-Member designates otherwise in writing.

Section 3.9 Regular meetings. The Board holds an annual meeting each calendar year and such regular meetings as it determines. Notice of regular meetings: ten (10) days.

Section 3.10 Special meetings. Special meetings may be called by the Chairman, by the Founder-Member, or by any two (2) directors, on five (5) days' notice stating the purpose; no other business may be transacted except as the notice states, unless all directors consent.

Section 3.11 Notice; waiver. Notice may be given in person, by telephone, or by electronic transmission to the address on record. A director may waive notice in writing before or after the meeting; attendance waives objection to notice except for an objection stated at the outset.

Section 3.12 Remote participation. Directors may participate in meetings by telephone or other communications equipment by which all participants may hear each other, as permitted by §617.0820, Florida Statutes; such participation constitutes presence.

Section 3.13 Quorum and voting. A majority of the directors then in office constitutes a quorum. The act of a majority of directors present at a meeting with a quorum is the act of the Board, except where a greater vote is required by the Articles, these Bylaws, or law. The Founder-Director counts toward quorum.

Section 3.14 Action without meeting. The Board may take any action without a meeting upon the written consent of a majority of the directors then in office setting forth the action taken, as the Articles permit pursuant to §617.0821, Florida Statutes. The Founder-Director's consent is required for any action

under Sections 3.6 (removal), 12.1 (bylaw amendment), or the creation of committees with delegated authority.

Section 3.15 Committees. The Board may create committees (including an Executive Committee) by resolution adopted by a majority of the full Board, with such authority as the resolution states, subject to §617.0825, Florida Statutes: no committee may (a) authorize distributions; (b) approve dissolution, merger, or sale of substantially all assets; (c) elect, appoint, or remove directors or fill vacancies; (d) amend the Articles or Bylaws; or (e) take any action requiring Founder-Member or Trust Protector consent. Committee membership is appointed by the Chairman. The Chairman serves ex officio on all committees with vote.

Section 3.16 Compensation of directors. Directors serve without compensation unless the Founder-Member authorizes reasonable compensation in writing; any compensation requires compliance with the Conflict of Interest Policy (directors with a financial interest recused) and documentation of comparability. Reimbursement of reasonable expenses is permitted.

Section 3.17 Resignation. A director may resign by written notice to the Chairman or Secretary, effective upon receipt or as the notice states.



ARTICLE IV — OFFICERS

Section 4.1 Officers. The officers are: Chairman/President and Chief Executive Officer; Secretary; Treasurer; and such Vice Presidents and other officers as the Chairman appoints. One person may hold multiple offices except that the same person may not be both President and Secretary where the Board so requires for attestation integrity.

Section 4.2 Appointment and removal. The Chairman appoints all officers and may remove any officer at will, with or without cause, at any time. The Founder-Member may likewise remove any officer. No officer other than the Chairman has removal protection under these Bylaws.

Section 4.3 Chairman, President and Chief Executive Officer — Israel Lee Armstead. The Chairman is the Corporation's chief executive, with authority to: (a) manage and direct all business, programs, and affairs of the Corporation within Board-established policy; (b) appoint and remove all

officers, employees, and agents; (c) execute and deliver contracts, instruments, and obligations authorized by the Board (and, for fundamental actions, by the Founder-Member and Trust Protector as required); (d) serve as the Corporation's principal spokesperson; (e) designate the Corporation's registered agent for service; (f) exercise all Tier 3 powers under the Autonomy Matrix (entity-standing, legal/financial filings, public commitments) — no other officer may exercise Tier 3 powers without the Chairman's written delegation for the specific act.

Section 4.4 Secretary — Tanya R. Armstead. The Secretary keeps minutes of Board and member proceedings, gives notices, attests instruments, maintains the corporate records (Articles, Bylaws, member ledger, Board Law, policies, consents), and certifies corporate actions.

OPEN ITEM

Section 4.5 Treasurer — **to be appointed by the Chairman** **.** The Treasurer oversees funds, financial records, and disbursements under the Chairman's direction; presents financial reports to the Board at least annually; and coordinates the annual information return (Form 990 series) with the Corporation's accountants.

Section 4.6 Vice Presidents. Vice Presidents perform duties assigned by the Chairman.

Section 4.7 Officer standard of conduct. Officers shall act in good faith, with the care an ordinarily prudent person would exercise, and in the Corporation's best interests, consistent with §§617.0840–617.0842, Florida Statutes.

Section 4.8 Compensation of officers. Reasonable compensation may be paid only upon (a) Conflict of Interest Policy compliance (interested persons recused), (b) documented comparability data, and (c) written approval of the Founder-Member. The Chairman's own compensation, if any, requires the same procedure with the Chairman recused and the Trust Protector concurring that the procedure was followed.



ARTICLE V — TRUST PROTECTOR

Section 5.1 Office and incumbent. The office of Trust Protector is established by Article VII of the Articles. The initial Trust Protector is **Elvia G. Armstead**, designated pursuant to the Board Law ratified 2026-09-09.

Section 5.2 Consent powers. The Trust Protector's prior written consent is required for the actions listed in Article VII, Section 2 of the Articles. Consent powers are negative (veto) powers only.

Section 5.3 Appointment, removal, vacancy. The Trust Protector is appointed by the Founder-Member and removable only by the Founder-Member. Vacancies are filled by the Founder-Member within ninety (90) days.

Section 5.4 No operational authority. The Trust Protector is not an officer or director by virtue of this office (unless separately elected), has no authority to direct operations or remove the Founder-Director, and owes the Corporation duties of loyalty and care in exercising consent powers.

Section 5.5 Entrenchment. This Article may be amended only as Article VII of the Articles provides (Founder-Member plus Trust Protector written consent).



ARTICLE VI — STEWARD

Section 6.1 Designation. Pursuant to the Board Law ratified 2026-09-09, the Corporation designates a program steward (the "Steward"), an advisory and operational role currently held by the Chairman's designated agent. The Steward is appointed and removable by the Chairman at will.

Section 6.2 Role. The Steward stewards the Corporation's operating doctrines — the Autonomy Matrix (tiered authority), the Escalation SLA, and the compliance spine — in day-to-day operations, and advises the Chairman and the Board on governance, compliance, and execution. The Steward has no vote, is not a director or officer, and may not bind the Corporation except as the Chairman delegates in writing for a specific act.

Section 6.3 Legal note. A non-natural person may not serve as a director or officer of the Corporation under Florida law; this Article creates no such status. Counsel has been asked to confirm the advisory formulation.



ARTICLE VII — MEETINGS OF THE BOARD (PROCEDURE SUPPLEMENT)

Section 7.1 Order. The Chairman determines the order of business.

Section 7.2 Minutes. Minutes of every Board and committee meeting, and every written consent, are kept by the Secretary and retained permanently.

Section 7.3 Annual elections. At the annual meeting (or by written consent), the Founder-Member elects the class of directors whose terms expire, and the Board confirms officers.



ARTICLE VIII — CONFLICT OF INTEREST POLICY

Section 8.1 Adoption. The Board has adopted the Conflict of Interest Policy attached as Exhibit A to the Board adoption package (File 03), incorporated here by reference. All directors, officers, and key persons shall comply with it, including annual disclosure statements.

Section 8.2 Related-party transactions. Any transaction in which a director, officer, or the Founder-Member has a financial interest requires (a) full disclosure, (b) recusal of the interested person from deliberation and vote, (c) approval by disinterested directors (or the Founder-Member where no disinterested quorum exists), and (d) a written finding that the transaction is fair to the Corporation and furthers its exempt purposes.



ARTICLE IX — INDEMNIFICATION

Section 9.1 Mandatory and permissive indemnification. The Corporation shall indemnify its directors, officers, the Trust Protector, and the Steward to the fullest extent permitted by §617.0831, Florida Statutes, for actions taken in good faith and in the Corporation's best interests. Indemnification for proceedings by or in the right of the Corporation is limited as the statute provides. No indemnification where the person is adjudged liable for willful misconduct or a knowing violation of law, or where indemnification would constitute prohibited inurement.

Section 9.2 Advancement. Expenses may be advanced upon an undertaking to repay if indemnification is ultimately unavailable, as the statute permits.

Section 9.3 Insurance. The Corporation may purchase directors-and-officers and other liability insurance as the Board determines.



ARTICLE X — RECORDS, REPORTS, AND FUNDS

Section 10.1 Records. The Corporation keeps correct and complete books and records of account, minutes, written consents, the member ledger (sole member: the Founder-Member), the Articles, these Bylaws, the Board Law, and all adopted policies, per §617.1601, Florida Statutes. Records are kept at the principal office or as the Secretary designates.

Section 10.2 Inspection. The Founder-Member and any director may inspect records as Chapter 617 provides.

Section 10.3 Fiscal year. The fiscal year ends December 31 (per the IRS determination letter's accounting period).

Section 10.4 Funds. Funds are deposited in accounts designated by the Chairman or Treasurer; disbursements follow Board-approved policy. No loans to directors or officers except as §617.0833 permits and the Conflict of Interest Policy allows (as a rule, none).

Section 10.5 Annual information return. The Treasurer, with the Corporation's accountants, ensures timely filing of the required Form 990 series return (EIN 99-3822441; 509(a)(2) public charity) and reports any Articles amendment on the return.



ARTICLE XI — EXECUTION OF INSTRUMENTS

Contracts, conveyances, and obligations are executed by the Chairman, or by such officer or agent as the Chairman authorizes in writing for the specific instrument, subject to any required Founder-Member or Trust Protector consents for fundamental actions.



ARTICLE XII — AMENDMENTS

Section 12.1 General. Except as provided in Section 12.2, these Bylaws may be amended or repealed, and new Bylaws adopted, by the affirmative vote of two-thirds (2/3) of the directors then in office, or by the written consent of the Founder-Member.

Section 12.2 Entrenched Bylaw provisions. The following may be amended or repealed only with the prior written consent of the Founder-Member (in addition to any Board vote): Sections 2.3, 3.2, 3.4, 3.5, 3.6, 3.14, 4.2, 4.3, Article V, Article VI (Section 6.3), Article VIII, and this Section 12.2. Amendments to Article V (Trust Protector) additionally require the Trust Protector's written consent, mirroring Article VII of the Articles.

Section 12.3 Notice. Any director may propose a Bylaw amendment on ten (10) days' written notice stating the text.



CERTIFICATE OF ADOPTION *(to be completed at execution)*

The undersigned certifies that the foregoing Bylaws of E5 ENCLAVE INCORPORATED were duly adopted by the Board of Directors on _____, 2026.

Signature:

Printed name:

Tanya R. Armstead

Title:

Secretary

Date:

E 5 E N C L A V E I N C O R P O R A T E D

Board Adoption Package

Governance Package · Draft v1.0 — Prepared September 18, 2026

DRAFT — pending counsel review and board adoption. Nothing has been filed with the State of Florida. Nothing has been adopted. Draft resolutions, written consents, officer appointments, and conflict-of-interest policy.

Written Consents in Lieu of Meetings (Chapter 617, Florida Statutes)

DRAFT — NOT EXECUTED. Prepared 2026-09-18 for review by the Chairman and legal counsel. Executed only upon the Chairman's explicit authorization. Counsel review required before filing anything.

This package adopts the Amended and Restated Articles of Incorporation (File 01) and the Bylaws (File 02). It contains:

1. **Resolution A** — Board written consent (adopts restated articles; adopts bylaws; adopts COI policy; confirms officers).
2. **Resolution B** — Founder-Member written consent (sole member; adopts restated articles; elects directors; appoints Trust Protector; fixes board size).
3. **Exhibit A** — Conflict of Interest Policy.

4. **Exhibit B** — Annual disclosure statement form.



RESOLUTION A — ACTION BY WRITTEN CONSENT OF THE BOARD OF DIRECTORS

The undersigned, being all of the directors of E5 ENCLAVE INCORPORATED, a Florida not for profit corporation (the "Corporation"), acting pursuant to Section 617.0821, Florida Statutes, in lieu of a meeting, hereby adopt the following resolutions, effective as of _____, 2026:

RESOLVED, that the Amended and Restated Articles of Incorporation of the Corporation, in the form presented to the Board (File 01 of the governance package), be and hereby are approved and recommended to the Founder-Member for adoption, and the officers are authorized to file the same with the Florida Division of Corporations upon the Founder-Member's written authorization;

RESOLVED FURTHER, that the Bylaws of the Corporation, in the form presented to the Board (File 02 of the governance package), be and hereby are adopted as the Bylaws of the Corporation, effective upon filing of the Amended and Restated Articles or as otherwise provided therein;

RESOLVED FURTHER, that the Conflict of Interest Policy attached as Exhibit A be and hereby is adopted as the policy of the Corporation, and all directors, officers, and key persons shall execute the annual disclosure statement (Exhibit B);

RESOLVED FURTHER, that the officers of the Corporation are confirmed as follows, to serve at the pleasure of the Chairman: Chairman, President and Chief Executive Officer — Israel Lee Armstead;

Secretary — Tanya R. Armstead; Treasurer — OPEN ITEM to be appointed; each with the authority set forth in the Bylaws;

RESOLVED FURTHER, that the Trust Protector office is recognized, with Elvia G. Armstead serving as the initial Trust Protector pursuant to the Board Law ratified 2026-09-09 and Article VII of the Amended and Restated Articles;

RESOLVED FURTHER, that the officers are authorized and directed to take all actions necessary or appropriate to carry out the foregoing, including making any conforming, non-substantive changes to the filed Articles required by the Division of Corporations (substantive changes require new Board action).

Director signatures:

Director	Signature	Date
Israel Lee Armstead	_____	_____
Tanya R. Armstead	_____	_____
OPEN ITEM Third director	_____	_____



RESOLUTION B — ACTION BY WRITTEN CONSENT OF THE FOUNDER-MEMBER (SOLE MEMBER)

The undersigned, Israel Lee Armstead, being the sole member (Founder-Member) of E5 ENCLAVE INCORPORATED, a Florida not for profit corporation, acting pursuant to Chapter 617, Florida Statutes, in lieu of a meeting, hereby adopts the following, effective as of _____, 2026:

RESOLVED, that the Amended and Restated Articles of Incorporation of the Corporation, in the form presented (File 01), be and hereby are adopted as the Articles of Incorporation of the Corporation, superseding all prior articles;

RESOLVED FURTHER, that the number of directors is fixed at three (3);

RESOLVED FURTHER, that the following persons are elected directors, classified as stated: Israel Lee Armstead — Founder-Director (no term expiration); Tanya R. Armstead — Class I (term expires at the

2027 annual election); **OPEN ITEM** Third director — Class II (term expires at the 2028 annual election);

RESOLVED FURTHER, that Elvia G. Armstead is appointed as Trust Protector of the Corporation pursuant to Article VII of the Articles, to serve until removed as therein provided;

RESOLVED FURTHER, that the Founder-Member authorizes the officers to file the Amended and Restated Articles with the Florida Division of Corporations, accompanied by the required filing fee, at such time as the Founder-Member directs in writing. **No filing shall occur without that separate written direction.**

Founder-Member signature:

Signature: _____

Printed name: Israel Lee Armstead, Founder-Member (sole member)

Date: _____



EXHIBIT A — CONFLICT OF INTEREST POLICY

E5 ENCLAVE INCORPORATED — Conflict of Interest Policy Adopted _____, 2026

Article I — Purpose. The purpose of this Policy is to protect the Corporation's interest when it contemplates entering into a transaction or arrangement that might benefit the private interest of a director, officer, the Founder-Member, the Trust Protector, or a key employee, and to ensure the Corporation's compliance with Section 501(c)(3) of the Internal Revenue Code (no inurement; no excess benefit transactions under Section 4958).

Article II — Definitions.

1. *Interested Person* — any director, officer, the Founder-Member, the Trust Protector, or key employee who has a direct or indirect financial interest as defined below.
2. *Financial Interest* — (a) an ownership or investment interest in any entity with which the Corporation has a transaction or arrangement; (b) a compensation arrangement with the Corporation or with any entity or individual with which the Corporation has a transaction or arrangement; or (c) a potential ownership, investment, or compensation arrangement with any such entity or individual. Compensation includes direct and indirect remuneration and gifts or favors that are substantial in nature. A Financial Interest is not necessarily a conflict of interest; a conflict exists only where the Board or the Founder-Member decides one exists.
3. *Key employee* — any employee with authority over a substantial portion of the Corporation's activities, assets, income, or expenses.

Article III — Procedures.

1. *Duty to disclose.* Each Interested Person shall disclose the existence and nature of the Financial Interest and all material facts to the Board (or, for the Founder-Member's own interests, to the disinterested directors and the Trust Protector) before any related deliberation.
2. *Determining whether a conflict exists.* After disclosure, the Interested Person shall leave the meeting during discussion and vote on the matter. The remaining directors (a disinterested quorum being present) shall decide whether a conflict of interest exists.
3. *Procedures for addressing the conflict.* (a) The Chair (or disinterested presiding director) may appoint a disinterested person or committee to investigate alternatives. (b) After exercising due diligence, the disinterested directors shall determine whether the Corporation can obtain a more advantageous transaction with reasonable efforts from a non-conflicted source. (c) If not, the disinterested directors shall determine by majority vote whether the transaction is in the Corporation's best interest, for its own benefit, and fair and reasonable, and shall vote on whether to enter it. (d) The interested person shall not be present for the vote except to answer questions.
4. *Founder-Member transactions.* Where the Founder-Member is the Interested Person and no disinterested quorum of directors exists, the transaction requires the written concurrence of the Trust Protector that the procedures of this Article were followed and the transaction is fair to the Corporation.

Article IV — Records. Minutes (or written consents) shall record: the names of persons who disclosed or were found to have a Financial Interest, the nature of the interest, the action taken to determine whether a conflict existed, the names of persons present for discussion and votes, the content of the discussion including alternatives considered, and the record of each vote. Comparability data relied upon shall be described and retained.

Article V — Compensation. A voting member of the Board who receives compensation, directly or indirectly, from the Corporation is precluded from voting on matters pertaining to that member's compensation and shall be absent during deliberation except to answer questions. No person whose compensation is under consideration may participate in the comparability review except to present data.

Article VI — Annual statements. Each director, officer, the Founder-Member, the Trust Protector, and each key employee shall annually sign a statement (Exhibit B) affirming receipt, understanding, and compliance, and disclosing interests.

Article VII — Periodic reviews. The Board shall conduct periodic reviews of compensation arrangements and of partnerships, joint ventures, and arrangements with management organizations, to ensure they further charitable purposes, do not result in inurement or impermissible private benefit, and that compensation remains reasonable — consistent with the Corporation's 509(a)(2) public-charity status.

Article VIII — Outside activities. Nothing in this Policy prohibits service as a director, officer, or employee of another organization (including AgriMesh Corporation and any future research affiliate), provided such service and any related transactions comply with this Policy.



EXHIBIT B — ANNUAL DISCLOSURE STATEMENT

I, _____, in my capacity as _____ of E5
ENCLAVE INCORPORATED, affirm:

1. I have received a copy of the Conflict of Interest Policy, have read and understand it, and agree to comply with it.

2. The Corporation is organized and operated exclusively for charitable, educational, and scientific purposes under Section 501(c)(3); I understand that no part of its net earnings may inure to my private benefit.
3. Except as disclosed below, I have no Financial Interest (as defined in the Policy) in any entity or transaction with which the Corporation does or proposes to do business.
4. Disclosures (if none, write "None"): _____

Signature:

Printed name:

Date:

E5 ENCLAVE INCORPORATED

Filing and Compliance Checklist

Governance Package · Draft v1.0 — Prepared September 18, 2026

DRAFT — pending counsel review and board adoption. Nothing has been filed with the State of Florida. Nothing has been adopted. Step-by-step draft checklist for filing with the Florida Division of Corporations and staying in good standing.

Amended and Restated Articles + Governance Package

DRAFT — Prepared 2026-09-18. Nothing filed. Counsel review required before filing. No filing occurs without the Chairman's separate explicit written authorization (Resolution B of File 03).



Part A — Pre-filing verification (all items must be resolved before signing)

- ☐ **Current Sunbiz record pulled.** Obtain the live Articles of Incorporation and most recent annual report for Document No. N24000007976 from the Florida Division of Corporations (public search — browser route, never a guessed URL). **Verbatim-copy into File 01, Article VIII and Article IX:**

registered agent name and address, principal office, mailing address. Confirm whether the current articles already provide for members (adoption procedure depends on it).

☐ **Third director confirmed.** The 2026-09-12 roster names Tanya R. Armstead (Secretary); the third current director of record must come from the Sunbiz annual report, not from memory.

☐ **Registered agent consent current.** Confirm the registered agent on record has accepted the designation (required on the filing).

☐ **Filing fee verified from the Division's official fee schedule.** Do NOT use a remembered figure. As of this draft, the figure is unverified — check the Division of Corporations' current published fee schedule for "Amended and Restated Articles of Incorporation — Not for Profit" (and, separately, the ~\$70 figure cited for a new nonprofit filing in File 05) before any payment is prepared.

☐ **Articles provisions cross-checked against the pulled current articles.** If the current articles contain provisions this restatement drops (e.g., specific-purpose language the IRS determination relied on), counsel confirms the restatement is safe. Note: the IRS determination (Letter 947, 07/12/2024) is already issued; the restatement must not jeopardize it.

☐ **Name availability for the research affiliate** (File 05) checked separately, if the Chairman wants that lane opened now.

Part B — Execution (only after Part A, and only on the Chairman's explicit "file" authorization)

☐ Resolution A (Board written consent) — signed by all three directors, dated.

☐ Resolution B (Founder-Member written consent) — signed by Israel Lee Armstead as sole member, dated, **including the separate written direction to file.**

☐ Amended and Restated Articles — Adoption Certificate completed (File 01).

☐ Bylaws — Certificate of Adoption completed (File 02, Secretary signs).

☐ Conflict of Interest Policy — Exhibit B annual statements signed by all directors, officers, Founder-Member, Trust Protector.

☐ File the Amended and Restated Articles with the Florida Division of Corporations (online via the Division's portal — the Chairman's lane for the final submit, or counsel's) with the verified fee.

- ☐ Retain the Division's stamped/acknowledged copy in ~/workspace/your_files/e5-governance/ (filed/ subfolder).

Part C — Post-filing compliance (within 30 days)

- ☐ Report the Articles amendment on the next Form 990 (Schedule O) — the 990 preparer must have the filed restatement.
- ☐ Confirm the annual report (due each year January 1 – May 1) reflects current officers/directors and the registered agent.
- ☐ Update the registered agent record immediately if the agent or office changes (§617.0502).
- ☐ Minute-book assembly: filed Articles, Bylaws, both consents, COI statements, Board Law ratification record, in one binder/location.

Part D — Ongoing 501(c)(3) compliance spine (annual)

- ☐ **Form 990 series filed on time** (EIN 99-3822441; fiscal year ends December 31; 509(a)(2) public charity — mind the public-support test: normally >1/3 of support from contributions + related-function gross receipts, ≤1/3 from investment income).
- ☐ **No inurement / no excess benefit transactions** (§4958): all insider compensation documented with comparability data per the COI Policy.
- ☐ **Lobbying stays insubstantial** (no §501(h) election on record — the default facts-and-circumstances test applies); **no political campaign intervention, ever** — the bright line.
- ☐ **FDACS charitable solicitation registration** (CH85245, issued 2026-09-18) renewed as required; solicitation disclosures on all contribution surfaces; registered email kept current (FDACS corresponds by email only per §570.161, F.S.).
- ☐ **Minutes and written consents** kept for every Board and member action.
- ☐ **Board Law + Bylaws conflict check** at each annual meeting: the higher-threshold instrument controls.

Part E — Standing flags carried forward

- ☐ **Counsel must opine before E5 is named as a research institution on any STTR proposal** (15 U.S.C. § 638(e)(8) → § 3703(3) "exclusively scientific or educational" test). E5's honest purposes are broader; the affiliate (File 05) is the clean vehicle.
- ☐ **STTR memo** (~/`workspace/sbir-master-archive/intel/e5-sttr-research-institution-verification-2026-09-18.md`) to be updated to reflect the affiliate strategy once the Chairman decides.
- ☐ **Unverified items log:** (1) registered agent name/address; (2) principal office; (3) third director; (4) current-articles text vs. restatement deltas; (5) Division filing fee. None of these were invented in the drafts — all are bracketed. Verification of each is a filing precondition.

E5 ENCLAVE INCORPORATED

Research Affiliate Option

Governance Package · Draft v1.0 — Prepared September 18, 2026

DRAFT — pending counsel review and board adoption. Nothing has been filed with the State of Florida. Nothing has been adopted. The optional dedicated nonprofit research affiliate — exploratory only.

E5 ENCLAVE INCORPORATED · Governance Package, File 05

DRAFT — Prepared 2026-09-18 on the Chairman's direction. Nothing filed. Counsel review required before formation.

Why this file exists. Parallel research (the STTR homework, 2026-09-18) found that on a strict reading of 15 U.S.C. § 638(e)(8) → § 3703(3), E5's admitted broader purposes **fail** the "owned and operated exclusively for scientific or educational purposes" test — and that amending E5's own articles is a **weak** fix, because the real work would contradict an "exclusively" clause. E5's restated purposes (File 01) are therefore 501(c)(3)-clean and operationally honest, and do **not** attempt Stevenson-Wydler compliance. The clean STTR research-institution lane is a **dedicated nonprofit research affiliate** whose purposes genuinely are exclusively scientific and educational.



1. The design

A new Florida not for profit corporation — working name **E5 RESEARCH INSTITUTE, INC.** (name availability to be checked at filing; do not represent as taken) — formed as a single-purpose research organization:

OPEN ITEM

- **Purposes limited to scientific and educational activity** — the only exempt purposes the affiliate pursues.
- **Founder-member control mirroring E5** — Israel Lee Armstead as sole Founder-Member, with the same Trust Protector (Elvia G. Armstead) consent architecture, so the affiliate inherits the Chairman's governance doctrine without importing E5's broader operations.
- **E5 as the affiliate's programmatic partner, not its alter ego** — E5 may subcontract to, or contract with, the affiliate for SBIR/STTR work-share (SBC $\geq 40\%$, RI $\geq 30\%$), documented at arm's length under both entities' conflict-of-interest policies.
- **501(c)(3) pursued** via Form 1023 after formation (the STTR statute does not strictly require 501(c)(3) status — the functional test controls — but IRS determination is the standard evidence and is strongly recommended).

2. Purposes language that WOULD satisfy Stevenson-Wydler

Draft Article II for the affiliate's Articles of Incorporation (final form subject to counsel):

"The Corporation is organized and shall be operated **exclusively for scientific and educational purposes** within the meaning of 15 U.S.C. § 3703(3) and Section 501(c)(3) of the Internal Revenue Code, including:

- (a) conducting scientific research in artificial intelligence and machine learning, agricultural technology and precision agriculture, and data science, and publishing and freely disseminating the resulting research, datasets, and methodologies;
- (b) developing and maintaining open research infrastructure — including open datasets, benchmarks, and reference implementations — for the benefit of the scientific community;

(c) providing education and training directly in support of such research, including research fellowships, technical training, and public educational materials concerning the Corporation's research fields.

The Corporation shall not engage in any activity beyond scientific research and education in direct support thereof. No part of its net earnings shall inure to any private person; no substantial lobbying; no political campaign intervention; assets on dissolution distributed per Section 501(c)(3)."

Note the deliberate narrowing: no community-development, no fiscal sponsorship, no advocacy — the activities that make E5's own clause honest are exactly the activities excluded here.

3. Formation checklist

- ☐ Name availability search (Florida Division of Corporations) for the chosen name.
- ☐ Articles of Incorporation — exclusively-scientific/educational purposes per §2 above; registered agent designated with consent; principal office; no members other than the Founder-Member (or articles-created sole-member structure mirroring File 01).
- ☐ Bylaws — mirror the File 02 control architecture (Founder-Director, staggered terms, Trust Protector consent, entrenched provisions), adapted to the affiliate's narrow purposes.
- ☐ Board + member written consents adopting articles, bylaws, COI policy.
- ☐ **File with the Florida Division of Corporations** — filing fee approximately \$70 (figure from the STTR homework, 2026-09-18 — **verify against the Division's current published fee schedule before paying**).
- ☐ EIN application (IRS — no fee).
- ☐ Form 1023 (or 1023-EZ if eligible) for 501(c)(3) determination — user fee per current IRS schedule (**verify**; do not rely on a remembered figure).
- ☐ SAM.gov registration / UEI for the affiliate (needed before it can appear on federal proposals).
- ☐ Capability statement for the affiliate (research staff, facilities, past performance, publications) — the STTR agencies evaluate the RI partner's substance, not just its paperwork.
- ☐ Allocation of Rights / IP agreement framework between AgriMesh Corporation (the SBIR/STTR applicant) and the affiliate, per agency requirements.

4. Cost summary (all figures approximate — verify before spending)

Item	Approx.	Status
Florida nonprofit Articles filing	~\$70	From STTR homework 2026-09-18 — verify at the Division's fee schedule
EIN	\$0	IRS, no fee
Form 1023 user fee	Per current IRS schedule	Verify — do not use a remembered figure
SAM.gov / UEI	\$0	Free
Registered agent (if commercial)	Varies	Chairman's choice; his own agent lane may apply

No filing or formation step occurs without the Chairman's explicit authorization. The affiliate is a recommended option, not a decided one.

5. Relationship to E5's other lanes

- **E5 as SBIR subcontractor:** E5's real work (education programs, community deployment, fiscal sponsorship) is subcontractable SBIR/STTR work-share where the topic allows — honest, 501(c)(3)-consistent, and outside the RI test.
- **University / FFRDC fallback:** the standing fallback research-institution partner remains a university or FFRDC for any proposal where the affiliate is not yet formed, not yet determined, or not yet credible.
- **AgriMesh Corporation** remains the for-profit SBIR/STTR applicant (per the ratified os-blueprint).

6. Standing flag

Counsel must opine before E5 is named as a research institution on any STTR proposal. Until counsel opines otherwise, E5 is positioned as subcontractor/partner — never as the STTR research institution. The affiliate, once formed, determined, and substantively capable, is the vehicle for the RI role.